THE NEW DRUGS AND CLINICAL TRIALS RULES, 2019

Ministry of Health and Family Welfare (Department of Health and Family Welfare), New Delhi
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CHAPTER VI: ACCELERATED APPROVAL AND POST-MARKETING SURVEILLANCE

[Clause NDCTR-2019-R67(1)] Reporting of Serious Adverse Events in Clinical Trials and Post-Approval Surveillance
Rule 67(1): In the event of any serious adverse event or adverse drug reaction arising during the conduct of a clinical trial or reported under post-marketing authorization surveillance, the sponsor or marketing authorisation holder shall report the occurrence to the Central Licencing Authority (CDSCO) within fourteen (14) calendar days of becoming aware of the event.

[Clause NDCTR-2019-R67(2)] Documentation and Preliminary Analysis of Seriousness
Rule 67(2): The preliminary adverse event report shall specify patient demographics, suspect medicinal product, reaction description, concomitant therapies, temporal sequence of drug administration, and clinical criteria substantiating seriousness, including inpatient hospitalization, disability, life-threatening manifestation, or death.

[Clause NDCTR-2019-R67(3)] Modifying Provision for Acute Hospitalization and Severe Cutaneous Reactions
Rule 67(3): SPECIAL REGULATORY MODIFIER: Where any adverse drug reaction involves acute hospital admission, emergency medical intervention, or life-threatening manifestations such as severe cutaneous adverse reactions (including toxic epidermal necrolysis, Stevens-Johnson syndrome, or exfoliative dermatitis), the marketing authorisation holder must submit an EXPEDITED REPORT within fourteen (14) calendar days, irrespective of whether the symptom or reaction is previously catalogued in the approved package insert.

RULE 68: PERIODIC SAFETY UPDATE REPORTS (PSUR)

[Clause NDCTR-2019-R68(1)] Periodic Safety Update Report Cadence
Rule 68(1): The marketing authorisation holder shall submit Periodic Safety Update Reports (PSURs) to the Central Licencing Authority every six months for the initial two years following product marketing approval, and subsequently annually for the succeeding two years.

[Clause NDCTR-2019-R68(4)] Routing Criteria for Non-Expedited Adverse Events
Rule 68(4): Adverse reactions assessed as non-serious, or serious adverse events that are listed in the approved package insert and do not qualify for emergency regulatory intervention under Rule 67(3), shall be aggregated, systematically evaluated, and submitted under the PERIODIC SAFETY REPORT (PSUR) stream rather than expedited individual case safety reports.

THIRD SCHEDULE - TABLE 1: SUMMARY OF REPORTING OBLIGATIONS

Classification	Expectedness	Clinical Threshold	Regulatory Route	Statutory Timeline
Serious ADR	Unexpected	Death, Disability, Hospitalization	Expedited Report	14 Calendar Days
Serious ADR	Expected	Acute Hospitalization / SCAR Modifier (R67-3)	Expedited Report	14 Calendar Days
Serious ADR	Expected	Standard Course without Modifier	Periodic Safety Report	Per PSUR Schedule (6/12 mo)
Non-Serious ADR	Expected / Unexpected	No hospitalization, resolved outpatient	Periodic Safety Report / Non-Reportable	Documented in PSUR